

Court No. - 37

Case :- WRIT - C No. - 24091 of 2012

Petitioner :- Rajesh Khanna

Respondent :- Madhyanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Sanjay Singh, Amrendra Nath Rai

Respondent Counsel :- C.S.C., Shobhit Dubey

Hon'ble Sunil Ambwani, J.

Hon'ble Aditya Nath Mittal, J.

Shri Shobhit Dubey has accepted notice on behalf of respondent nos. 1 and 2. He is allowed one week's time to seek instruction in the matter. The respondents will produce the checking report; site plan, which they may have prepared and proof of service of notice before making the final assessment.

Put up on **23.5.2012** in the additional cause list.

Order Date :- 16.5.2012

RKP

Court No. - 37

Case :- WRIT - C No. - 24091 of 2012

Petitioner :- Rajesh Khanna

Respondent :- Madhyanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Sanjay Singh, Amrendra Nath Rai

Respondent Counsel :- C.S.C., Shobhit Dubey

Hon'ble Sunil Ambwani, J.

Hon'ble Het Singh Yadav, J.

On the request of Shri Shobhit Dubey to grant some more time to seek instructions, put up on Monday in the additional cause list.

Order Date :- 23.5.2012

RKP

Court No. - 37

Case :- WRIT - C No. - 24091 of 2012

Petitioner :- Rajesh Khanna

Respondent :- Madhyanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Sanjay Singh, Amrendra Nath Rai

Respondent Counsel :- C.S.C., Shobhit Dubey

Hon'ble Sunil Ambwani, J.

Hon'ble Aditya Nath Mittal, J.

With reference to our order dated 16.5.2012, the respondents have not produced the checking report; site plan which may have been prepared, and the proof of service of notice before making the final assessment.

Learned counsel appearing for the petitioner states that for the dues of the Tata Tele Services Limited, which has installed a tower, and for which the electricity supply was disconnected and the electricity is being obtained from the generator, the petitioner's shop has been sealed. The respondents are now going to seal the residence of the petitioner for recovery of the dues.

The respondents pray for and are allowed time upto tomorrow to produce the documents.

Put up tomorrow in the additional cause list.

The respondents will not take any further steps for recovery including the sealing of the residential house of the petitioner. A copy of the order be given to learned counsel appearing for the petitioner **today**.

Order Date :- 28.5.2012

RKP

Court No. - 37

Case :- WRIT - C No. - 24091 of 2012

Petitioner :- Rajesh Khanna

Respondent :- Madhyanchal Vidyut Vitran Nigam Ltd. And Others

Petitioner Counsel :- Sanjay Singh, Amrendra Nath Rai

Respondent Counsel :- C.S.C., Shobhit Dubey

Hon'ble Sunil Ambwani, J.

Hon'ble Aditya Nath Mittal, J.

We have heard Shri Sanjay Singh, learned counsel appearing for the petitioner. Shri Shobhit Dubey appears for respondent nos. 1 and 2. Learned Standing Counsel appears for the respondent no.3.

It is stated that the petitioner along with his family is living in his parental house in Mohalla Tarin Taqli, District Shahjahanpur. He has a domestic electricity connection of 3 KW since a long time. The petitioner also runs an ice cream parlour in a shop situated at ground floor in which a single phase of 2 KW commercial connection has been sanctioned. The petitioner has been regularly paying the bills. He has annexed the last bill of Rs. 13, 276/- which he has paid on 28.4.2012.

Learned counsel appearing for the petitioner submits that the petitioner has entered into an agreement with Tata Tele Services Limited for operating a transmission tower with CDMA antennas/Microwave antennas/tower for the transmission and reception of radio signals and for which the Tata Tele Services Limited was required to obtain a separate electricity connection. A 7 KW connection was sanctioned in favour of Tata Tele Services Limited, and which was disconnected on 6.3.2010. It is submitted that Tata Tele Services are being operated with the help of generator installed by the Tata Tele Services Limited of which the petitioner has no concern.

In a checking made on 25.11.2011, it was found that the Tata Tele Services transmission tower was being run by a two-four cable connected with the electricity connection sanctioned to the petitioner for domestic purpose and for running the ice cream parlour and in which a first information report was lodged registering Case Crime No. 1285 of 2011 under Section 135 of the Electricity Act.

The respondents thereafter made a provisional assessment on the formula CFDH provided in the U.P. Electricity Supply Code,

2005 raising a demand of Rs. 13, 98, 096/- to be paid by the petitioner. The petitioner objected to the provisional assessment bill on 24.1.2012. In his objections the petitioner has stated that he has a 3 KW connection for his residence and a 2 KW commercial connection for which he is regularly paying the bills. The petitioner has not given any unauthorised connection to his tenant. The checking was done arbitrarily without preparing checking report and which was not served upon the petitioner. The alleged illegal use of 12KW commercial connection has been denied. It is submitted that no person like Tata Tele Services Limited is existing and that the bill has been raised without any basis.

In this writ petition the respondents were given the time to obtain instructions. The respondents sought three adjournments in between which they have sealed the business premises of the petitioner for recovery of the amount vide citation dated 23.4.2012 under challenge in this writ petition.

Today, when the matter was taken up, Shri Shobhit Dubey has produced an order, by which the petitioner's objection has been decided.

A perusal of the order of the Executive Engineer, Profit Centre Town, Shahjahanpur, which does not bear any date, shows that he has not given any reasons whatsoever in deciding the objections. He has simply stated in his five-line order that the provisional assessment made by him does not require to be corrected and that the petitioner should immediately deposit the bill.

In case of report of unauthorised use of electricity, the electricity department is required to make a provisional assessment under Section 126 (1) of the Act, which should be served upon the person. Thereafter under Section 126 (3) the concerned Executive Engineer is required to decide the objections by a reasoned order against which an appeal is maintainable under Section 127 of the Act.

In the present case, we find that the provisional assessment order was made on 2.12.2011 to which an objection was filed on 24.1.2012. The Executive Engineer has admittedly not decided the objection before issuing citation dated 23.4.2012.

The respondents have committed gross violation of the provisions of assessments and realisation of the electricity dues. The respondents have not only failed to pass an order of final assessment, they also insisted upon the recovery and have sealed

the business premises of the petitioner, whereas they were taking time in the High Court to seek instructions.

On the facts and circumstances of the case, and on the admissions made by learned counsel appearing for the respondents that no final assessment order has been passed, we find that the entire proceedings were drawn illegally, arbitrarily and that the recovery is without any authority of law. The recovery proceedings as well as citation dated 23.4.2012 is quashed. The respondents are directed to immediately de-seal the residential and business premises of the petitioner as well as the Tata Tele Services Limited and to pass a final order of assessment after considering the objections of the petitioner and giving reasons thereof. In the facts and circumstances, it will be appropriate for the respondents to make a fresh spot inspection and to consider petitioner's objection in accordance with the fact situation on the spot.

It goes without saying that if the final assessment is passed, the petitioner will have a right to appeal under Section 127 of the Act.

The writ petition is **allowed** with the aforesaid directions.

Order Date :- 29.5.2012

RKP